15 U.S.C. § 1397(k). Continuation of common law liability. Compliance with any Federal motor vehicle safety standard issued under this subchapter does not exempt any person from any liability under common law.

On July 5, 1994, Congress recodified the Act "without substantive change" (Pub. L. No. 103-272, 108 Stat. 745, 941). The new Code provisions, in relevant part, are as follows:

49 U.S.C. § 30103. Relationship to other laws.

(b) Preemption. (1) When a motor vehicle safety standard is in effect under this chapter, a State or a political subdivision of a State may prescribe or continue in effect a standard applicable to the same aspect of performance of a motor vehicle or motor vehicle equipment only if the standard is identical to the standard prescribed under this chapter. However, the United States Government, a State, or a political subdivision of a State may prescribe a standard for a motor vehicle or motor vehicle equipment obtained for its own use that imposes a higher performance requirement than that required by the otherwise applicable standard under this chapter.

(2) A State may enforce a standard that is identical to a standard prescribed under this chapter.

* * * *

(e) Common Law Liability. Compliance with a motor vehicle safety standard prescribed under this chapter does not exempt a person from liability at common law.

All of the applicable preemption cases, including the decisions by the two courts below, discuss the provisions as codified before the 1994 recodification. This brief, therefore, uses the citations employed in those decisions.

B. Regulatory Provisions.

Federal Motor Vehicle Safety Standard 208, as codified when the vehicle at issue in this case was manufactured (*see* 49 C.F.R. § 571.208 (October 1986)),[1] provided in pertinent part:

§ 571.208 Standard No. 208; Occupant crash protection.

* * *

S1. Scope. This standard specifies performance requirements for the protection of vehicle occupants in crashes.

S2. Purpose. The purpose of this standard is to reduce the number of deaths of vehicle occupants, and the severity of

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[1] This version of the rule applies to vehicles manufactured during model year 1987. It includes the amendments promulgated by the agency in 1984, *see* 49 Fed. Reg. 28962 (July 17, 1984), and various clarifying amendments that did not affect the substance of the 1984 rule. *See* 50 Fed. Reg. 35237 (Aug. 30, 1985) (clarifying "extra-credit" provision for vehicles meeting the passive restraint requirement by means other than any type of seatbelt); 51 Fed. Reg. 9810 (March 21, 1986) (clarifying method for calculating compliance with phase-in percentages); 51 Fed. Reg. 31771 (Sept. 5, 1986) (correcting typographical error in clarified method for calculating compliance with phase-in percentages published at 51 Fed. Reg. 9810).

injuries, by specifying vehicle crashworthiness requirements in terms of forces and accelerations measured on anthropomorphic dummies in test crashes and by specifying equipment requirements for active and passive restraint systems.

S3. Application. This standard applies to passenger cars, multipurpose passenger vehicles, trucks, and buses. In addition, *S9., Pressure vessels and explosive devices,* applies to vessels designed to contain a pressurized fluid or gas, and to explosive devices, for use in the above types of motor vehicles as part of a system designed to provide protection to occupants in the event of a crash.

S4. General requirements.

S.4.1. Passenger cars.

* * *

S.4.1.2 Passenger cars manufactured on or after September 1, 1973, and before September 1, 1986. Each passenger car manufactured on or after September 1, 1973, and before September 1, 1986, shall meet the requirements of *S4.1.2.1, S4.1.2.2* or *S4.1.2.3.* A protection system that meets the requirements of *S4.1.2.1* or *S4.1.2.2* may be installed at one or more designated seating positions of a vehicle that otherwise meets the requirements of *S4.1.2.3.*

S4.1.2.1 First option - frontal/angular automatic protection system. The vehicle shall:

(a) At each front outboard designated seating position meet the frontal crash protection requirements of *S5.1* [governing *Occupant Crash Protection Requirements, front impact*] by means that require no action by vehicle occupants;

(b) At the front center designated seating position and at each rear designated seating position have a Type 1 or Type 2 seat belt assembly that conforms to Standard No. 209 [governing *Seat Belt Assemblies*] and to *S7.1* [governing *Seat Belt Assembly, Adjustment*] and *S7.2* [governing *Seat Belt Assembly, Latch Mechanism*]; and

(c) *Either.* (1) Meet the lateral crash protection requirements of *S5.2* [governing *Occupant Crash Protection Requirements, side impact*] and the rollover crash protection requirements of *S5.3* [governing *Occupant Crash Protection Requirements, rollover impact*] by means that require no action by vehicle occupants; or

(2) At each front outboard designated seating position have a Type 1 or Type 2 seat belt assembly that conforms to Standard No. 209 [governing *Seat Belt Assemblies*] and *S7.1* through *S7.3* [governing *Seat Belt Asembly, Adjustment, Latch Mechanism* and *warning system*], and that meets the requirements of *S5.1* [governing *Occupant Crash Protection Requirements, front impact*] with front test dummies as required by *S5.1* [governing *Occupant Crash Protection Requirements, front impact*], restrained by the Type 1 or Type 2 seat belt assembly (or the pelvic portion of any Type 2 seat belt assembly which has a detachable upper torso belt) in addition to the means that require no action by the vehicle occupant.

S4.1.2.2 Second option - head-on automatic protection system. The vehicle shall –

(a) At each designated seating position have a Type 1 seat belt assembly or Type 2 seat belt assembly with a detachable upper torso portion that conforms to *S7.1* [governing *Seat Belt Assembly, Adjustment*] and *S7.2*

[governing *Seat Belt Assembly, Latch Mechanism*] of this standard.

(b) At each front outboard designated seating position, meet the frontal crash protection requirements of *S5.1* [governing *Occupant Crash Protection Requirements, front impact*], in a perpendicular impact, by means that require no action by vehicle occupants;

(c) At each front outboard designated seating position, meet the frontal crash protection requirements of *S5.1* [governing *Occupant Crash Protection Requirements, front impact*], in a perpendicular impact, with a test device restrained by a Type 1 seat belt assembly; and

(d) At each front outboard designated seating position, have a seat belt warning system that conforms to *S7.3* [governing *Seat Belt Assembly, warning system*].

S4.1.2.3 Third option - lap and shoulder belt protection system with belt warning.

S.4.1.2.3.1 Except for convertibles and open-body vehicles, the vehicle shall –

(a) At each front outboard designated seating position have a seat belt assembly that conforms to *S7.1* [governing *Seat Belt Assembly, Adjustment*] and *S7.2* [governing *Seat Belt Assembly, Latch Mechanism*] of this standard, and a seat belt warning system that conforms to *S7.3* [governing *Seat Belt Assembly, warning system*]. The belt assembly shall be either a Type 2 seat belt assembly with a nondetachable shoulder belt that conforms to Standard No. 209 (§ 571.209) [governing *Seat Belt Assemblies*], or a Type 1 seat belt assembly such that with a test device restrained by the

assembly the vehicle meets the frontal crash protection requirements of *S5.1* [governing *Occupant Crash Protection Requirements, front impact*] in a perpendicular impact.

(b) At any center front designated seating position, have a Type 1 or Type 2 seat belt assembly that conforms to Standard No. 209 (§ 571.209) [governing *Seat Belt Assemblies*] and to *S7.1* [governing *Seat Belt Assembly, Adjustment*] and *S7.2* [governing *Seat Belt Assembly, Latch Mechanism*] of this standard, and a seat belt warning system that conforms to *S7.3* [governing *Seat Belt Assembly, warning system*]; and

(c) At each other designated seating position, have a Type 1 or Type 2 seat belt assembly that conforms to Standard No. 209 (§ 571.209) [governing *Seat Belt Assemblies*] and *S7.1* [governing *Seat Belt Assembly, Adjustment*] and *S7.2* [governing *Seat Belt Assembly, Latch Mechanism*] of this standard.

S4.1.2.3. Convertibles and open-body type vehicles shall at each designated seating position have a Type 1 or Type 2 seat belt assembly that conforms to Standard No. 209 (§ 571.209) [governing *Seat Belt Assemblies*] and to *S7.1* [governing *Seat Belt Assembly, Adjustment*] and *S7.2* [governing *Seat Belt Assembly, Latch Mechanism*] of this standard, and at each front designated seating position have a seat belt warning system that conforms to *S7.3* [governing *Seat Belt Assembly, warning system*].

S4.1.3 Passenger cars manufactured on or after September 1, 1986, and before September 1, 1989.

S4.1.3.1 Passenger cars manufactured on or after September 1, 1986, and before September 1, 1987.

S4.1.3.1.1 Subject to *S4.1.3.1.2* and *S4.1.3.4*, each passenger car manufactured on or after September 1, 1986, and before September 1, 1987, shall comply with the requirements of *S4.1.2.1*, *S4.1.2.2* or *S4.1.2.3*. A vehicle shall not be deemed to be in noncompliance with this standard if its manufacturer establishes that it did not have reason to know in the exercise of due care that such vehicle is not in conformity with the requirement of this standard.

S4.1.3.1.2 Subject to *S4.1.3.4* and *S4.1.5*, the amount of passenger cars, specified in *S4.1.3.1.1* complying with the requirements of *S4.1.2.1* shall be not less than 10 percent of:

(a) The average annual production of passenger cars manufactured on or after September 1,1983, and before September 1, 1986, by each manufacturer, or

(b) The manufacturer's annual production of passenger cars during the period specified in *S4.1.3.1.1*.

S4.1.3.2 Passenger cars manufactured on or after September 1, 1987, and before September 1, 1988.

S4.1.3.2.1 Subject to *S4.1.3.2.2* and *S.4.1.3.4*, each passenger car manufactured on or after September 1, 1987, and before September 1, 1988, shall comply with the requirements of *S4.1.2.1*, *S4.1.2.2* or *S4.1.2.3*. A vehicle shall not be deemed to be in noncompliance with this standard if its manufacturer establishes that it did not have reason to know in the exercise of due care that such vehicle is not in conformity with the requirement of this standard.

S4.1.3.2.2 Subject to *S4.1.3.4* and *S.4.1.5*, the amount of passenger cars specified in *S4.1.3.2.1* complying

with the requirements of *S4.1.2.1* shall be not less than 25 percent of:

(a) The average annual production of passenger cars manufactured on or after September 1, 1984, and before September 1, 1987, by each manufacturer, or

(b) The manufacturer's annual production of passenger cars during the period specified in *S4.1.3.2.1*.

S4.1.3.3 Passenger cars manufactured on or after September 1, 1988, and before September 1, 1989.

S4.1.3.3.1 Subject to *S4.1.3.3.2* and *S4.1.3.4*, each passenger car manufactured on or after September 1, 1988, and before September 1, 1989, shall comply with the requirements of *S4.1.2.1*, *S4.1.2.2* or *S4.1.2.3*. A vehicle shall not be deemed to be in noncompliance with this standard if its manufacturer establishes that it did not have reason to know in the exercise of due care that such vehicle is not in conformity with the requirement of this standard.

S4.1.3.3.2 Subject to *S4.1.3.4* and *S4.1.5*, the amount of passenger cars specified in *S4.1.3.3.1* complying with the requirements of *S4.1.2.1* shall be not less than 40 percent of:

(a) The average annual production of passenger cars manufactured on or after September 1, 1985, and before September 1, 1988, by each manufacturer; or

(b) The manufacturer's annual production of passenger cars during the period specified in *S4.1.3.3.1*.

S4.1.3.4 Calculation of complying passenger

cars.

(a) For the purposes of calculating the numbers of cars manufactured under *S4.1.3.1.2, S4.1.3.2.2,* or *S4.1.3.3.2* to comply with *S4.1.2.1*:

(1) Each car whose driver's seating position complies with the requirements of *S4.1.2.1(a)* by means not including any type of seat belt and whose front right seating position will comply with the requirements of *S4.1.2.1(a)* by any means is counted as 1.5 vehicles, and

(2) Each car whose driver's seating position complies with the requirements of *S4.1.2.1(a)* by means not including any type of seat belt and whose front right seat seating position is equipped with a manual Type 2 seat belt is counted as one vehicle.

(b) For the purposes of complying with *S4.1.3.1.2,* a passenger car may be counted if it:

(1) Is manufactured on or after September 1, 1985, but before September 1, 1986, and

(2) Complies with *S4.1.2.1.*

(c) For the purposes of complying with *S4.1.3.2.2,* a passenger car may be counted if it:

(1) Is manufactured on or after September 1, 1985, but before September 1, 1987.

(2) Complies with *S4.1.2.1,* and

(3) Is not counted toward compliance with

S4.1.3.1.2.

(d) For the purposes of complying with *S4.1.3.3.2,* a passenger car may be counted if it:

(1) Is manufactured on or after September 1, 1985, but before September 1, 1988,

(2) Complies with *S4.1.2.1;* and

(3) Is not counted toward compliance with *S4.1.3.1.2* or *S4.1.3.2.2.*

S4.1.3.5 Passenger cars produced by more than one manufacturer.

S4.1.3.5.1 For the purposes of calculating average annual production of passenger cars for each manufacturer and the amount of passenger cars manufactured by each manufacturer under *S4.1.3.1.2, S4.1.3.2.2* or *S4.1.3.3.2,* a passenger car produced by more than one manufacturer shall be attributed to a single manufacturer as follows, subject to *S4.1.3.5.2:*

(a) A passenger car which is imported shall be attributed to the importer.

(b) A passenger car manufactured in the United States by more than one manufacturer, one of which also markets the vehicle, shall be attributed to the manufacturer which markets the vehicle.

S4.1.3.5. A passenger car produced by more than one manufacturer shall be attributed to any one of the vehicle's manufacturers specified by an express written

contract, reported to the National Highway Traffic Safety Administration under 49 CFR Part 585, between the manufacturer so specified and the manufacturer to which the vehicle would otherwise be attributed under *S4.1.3.5.1.*

S4.1.4 Passenger cars manufactured on or after September 1, 1989. Except as provided in *S4.1.5,* each passenger car manufactured on or after September 1, 1989, shall comply with the requirements of *S4.1.2.1.* A vehicle shall not be deemed to be in noncompliance with this standard if its manufacturer establishes that it did not have reason to know in the exercise of due care that such vehicle is not in conformity with the requirement of this standard.

S4.1.5 Mandatory seatbelt use laws.

S4.1.5.1 If the Secretary of Transportation determines, by not later than April 1, 1989, that state mandatory safety belt usage laws have been enacted that meet the criteria specified in *S4.1.5.2* and that are applicable to not less than two-thirds of the total population of the 50 states and the District of Columbia (based on the most recent Estimates of the Resident Population of States, by Age, Current Population Reports, Series P-25, Bureau of the Census), each passenger car manufactured under *S4.1.3* or *S4.1.4* on or after the date of that determination shall comply with the requirements of *S4.1.2.1, S4.1.2.2* or *S4.1.2.3.*

S4.1.5.2 The minimum criteria for state mandatory safety belt usage laws are:

(a) Require that each front seat occupant of a passenger car equipped with safety belts under Standard No. 208 has a safety belt properly fastened about his or her body at all times when the vehicle is in forward motion,

(b) If waivers from the safety belt usage requirement are to be provided, permit them for medical reasons only.

(c) Provide for the following enforcement measures:

(1) A penalty of not less than $25.00 (which may include court costs) for each occupant of a car who violates the belt usage requirement.

(2) A provision specifying that the violation of the belt usage requirement may be used to mitigate damages with respect to any person who is involved in a passenger car accident while violating the belt usage requirement and who seeks in any subsequent litigation to recover damages for injuries resulting from the accident. This requirement is satisfied if there is a rule of law in the State permitting such mitigation.

(3) A program to encourage compliance with the belt usage requirement.

(d) An effective date of not later than September 1, 1989.

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